

		"nominate five persons from lists of persons supplied jointly by the parties to the arbitration" pursuant to Code of Civil Procedure section 1281.6. Plaintiff's request for judicial notice is DENIED as the court declines to consider all new points, arguments, and evidence presented for the first time on reply. (<i>Balboa Ins. Co. v. Aguirre</i> (1983) 149 Cal.App.3d 1002, 1010; <i>Jay v. Mahaffey</i> (2013) 218 Cal.App.4th 1522, 1537-1538.) The ADR Review Hearing is continue to 10/26/2023 at 1:30 p.m. Plaintiff to give notice.
60	Hale vs. Hyundai Motor America Case No. 30-2020-01129492	Plaintiff MARCIA G. HALE ("Plaintiff") will, and hereby does, move for an Order for: (1) payment by Hyundai of \$5,000 in previously-ordered, accrued sanctions within ten (10) calendar days of the Court's entry of its order granting this Motion: and (2) (a) terminating sanctions, specifically, striking Hyundai's Answer filed in this action or entering default judgment entered against Hyundai and in favor of Plaintiff in an amount to be proved at a default prove-up hearing; or, in the alternative (b) a fourth order compelling Hyundai to comply with the Court's March 18, 2021, April 22, 2022, and April 6, 2023 Orders and for prospective sanctions of \$1000 per day for each day that Hyundai does not comply. Plaintiff brings this Motion is made pursuant to California Code of Civil Procedure Sections 128(a)(4) and 2023.030(d)(1) & (4). Code Civ. Proc. §128(a)(4) provides, "Every court shall have the power to... compel obedience to its judgments, orders, and process, and to the orders of a judge out of court, in an action or proceeding pending therein." [CCP §128(a)(4).] Code Civ. Proc. §2023.030(d)(1) provides, "The court may impose a terminating sanction by... An order striking out the pleadings or parts of the pleadings of any party engaging in the misuse of the discovery process." [CCP §2023.030(d)(1).] Code Civ. Proc. §2023.030(d)(4) provides, "The court may impose a terminating sanction by... An

		order rendering a judgment by default against that party.” [CCP §2023.030(d)(4).] <i>History of the Discovery Dispute Herein</i> On March 13, 2020, Plaintiff served Requests for Production of Documents, Set One (“RFPs”) on Defendant. Plaintiff re-served the RFPs on April 30, 2020, with a corrected proof of service. [Decl. of Dolin¶4.] On May 13, 2020, Defendant served responses to Plaintiff’s RFPs. [Id.¶5.] On September 21, 2020, Plaintiff filed a Motion to Compel Further Responses to Plaintiff’s Request for Documents, Set One. [Id.¶6.] As to the RFPs relevant to this motion the Court ruled as follows on March 18, 2021: RFP No. 8: “The Warranty Policy and Procedure Manual published by YOU and provided to YOUR authorized repair facility(s), within the state of California, from 2012 to the present. [This request will be understood to include production of any and all versions of such manual as distributed to YOUR dealerships during the relevant time frame].” HMA objected claiming it was vague, ambiguous, unintelligible, overly broad, unduly burdensome, and oppressive especially since plaintiff’s warranty visits began in 2016. HMA also claimed attorney-client, work product, and/or consulting expert privileges. HMA further claimed the right to privacy, including trade secret and confidential information. Finally, it claimed the request sought irrelevant information. Plaintiff is alleging breach of warranty and failure to repair under the Song-Beverly Act. Therefore, the documents sought are relevant. The motion to compel a further response to this request is GRANTED. The court orders HMA to further respond and produce any Warranty Policy and Procedure Manual it provided to authorized repair facilities within the state of California from 2015 to present. The response must state (1) whether documents are being produced pursuant to the request, (2) if no document is being produced, a reason for the inability to comply pursuant to CCP §2031.230, (3) whether any documents are being withheld pursuant to a privilege, and if so, to provide a privilege log, and (4) the specific documents responsive to the request....
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	RFP NO. 68: "DOCUMENTS, including electronically stored information and electronic mails, regarding any communications between YOU and any government agency or entity (e.g. National Highway Traffic Safety Administration ("NHTSA")) regarding ENGINE DEFECT(S) in HYUNDAI VEHICLES." HMA claims it would provide all Technical Service Bulletins, which would show whether HMA had knowledge of the defects. However, the NHTSA or agency documents would also be relevant and reasonably calculated to lead to the discovery of admissible evidence. Therefore, the court orders HMA to provide a further response to this request. The response must state (1) whether documents are being produced pursuant to the request, (2) if no document is being produced, a reason for the inability to comply pursuant to CCP §2031.230, (3) whether any documents are being withheld pursuant to a privilege, and if so, to provide a privilege log, and (4) the specific documents responsive to the request. Modified #68: court orders HMA to provide a further response to 1.8 liter NU engine in the 2011 Elantra vehicle to just California. The motion to compel a further response to this request is GRANTED as modified. Notably, the Court did not award sanctions. Also significant, the Court proceeded to rule on this motion despite the parties failing to file a joint separate statement as ordered. [ROA 90.] The Court ordered Defendant to give notice, but it failed to do so. [ROA 90, and Decl. of Dolin¶8.] Defendant failed to comply with the March 18, 2021 Order, so on December 20, 2021, Plaintiff filed a Motion to Compel Compliance with the March 18, 2021 Discovery Order and for Prospective Sanctions of \$250 Per Day for each day that Defendant did not comply with the order. [Id¶10.] Plaintiff's motion was not heard until April 28, 2022. In ruling on the motion this Court noted, "Defendant does not dispute that it failed to provide further responses. Rather, it claims that due to multiple transfers of the case between handling attorneys within defense counsel's firm, the order 'was lost in the shuffle' (Alividao
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	Decl., ¶ 5.) Defendant states that it will comply with the order and provide further responses and will apprise the court prior to the hearing regarding such compliance. It also argues that there was no deadline for providing the responses and that there is a motion to compel arbitration pending.” [ROA 166.] As such, the Court granted the motion and ordered Defendant to provide further responses within 20 days in compliance with the 3/18/21 minute order. The Court did not award sanctions. [ROA 166.] Incredibly, at this point it had been almost two (2) years since Plaintiff first propounded the discovery at issue. Ultimately, Hyundai failed to provide supplemental responses, the Court-ordered verified, supplemental responses without objections, a privilege log, or corresponding supplemental document production. [Decl. of Dolin ¶13.] As such, on March 6, 2023, Plaintiff filed a Motion for (1) Issue and/or Evidentiary Sanctions; Or, in the Alternative (2) A Second Order Compelling Compliance with the Court’s March 18, 2021 Discovery Order and Prospective Sanctions of \$500 Per Day. [Id ¶14.] The hearing for this motion was set for April 6, 2023. Despite the harsh nature of the requested relief, Defendant filed an untimely opposition and provided no oral argument. Plaintiff submitted on the tentative ruling. [ROA 282.] On April 6, 2023, this Court ruled, in part, as follows: “In Defendant’s untimely opposition, it admits its failure to comply, but explains, “HMA has continued to suffer from staffing issues throughout 2022 that have partly contributed to delays, which was also followed by Defense Counsel going out on paternity leave beginning in October 2022 until near the end of the year. (Aliviado Decl. ¶ 3-4.)” (Opp. page 3:13-16.) “Notably, Plaintiff has been seeking the documents herein for three (3) years, having first served the RFPs on 3/13/2020. Interestingly,
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	although Attorney Aliviado provides a declaration indicating, "HMA has continued to encounter staffing shortages throughout 2022...." (Decl. of Aliviado¶3), no one from HMA submitted a declaration verifying any shortages at HMA. Furthermore, shortages in 2022 do not excuse failing to respond to discovery first sought in 2020, especially considering it is now 2023. "As to paternity leave, Mr. Aliviado declares, "In October 2022, I went out on paternity leave that lasted through the better part of the end of the year." (Decl. of Aliviado¶4.) Yet, by October 2022, this Court had already twice ordered compliance on 3/18/2021 and 4/28/2022. Furthermore, the opposition, filed late on 3/28/2023, establishes that despite Mr. Aliviado's return to work for at least three months, Defendant has still not complied with the Court's orders. That is, it is "hopeful that the outstanding discovery will be produced to Plaintiff by the time of the hearing on Plaintiff's Motion." (Opp. page 3:12-13.) "Additionally, there is no showing by Mr. Aliviado that no other attorney in the Theta Law Firm was unable to represent Defendant during Mr. Aliviado's paternity leave. Indeed, the Court notes that Attorney Soheyl Tahsildoost's name appears on the Opposition as well. "Finally, although not mentioned in the papers, the Court recalls that Defendant filed a Motion for Summary Adjudication in October 2022 which was recently heard on 3/16/2023. (ROA 274.) Due to Defendant's procedural errors and Plaintiff's CCP §437c(h) request (based on the need to obtain the discovery at issue herein), the Court denied that motion without prejudice. Thus, Defendant's failure to comply with this Court's discovery orders is delaying the case. "All in all, the Court finds the Defendant's excuses herein lack merit; and as such, the continuing failure to comply with the Court's prior orders is willful. "Because the Court has not imposed lesser sanctions first, it denies evidentiary and issue sanctions at this time. Therefore, the motion seeking issue or evidentiary sanctions is DENIED. "Nevertheless, the Court will impose sanctions in the amount of \$500 dollars each day that
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	Defendant does not comply with the Orders. [Lopez v. Watchtower Bible & Tract Society of New York, Inc. (2016) 246 Cal.App.4th 566, 605.] Thus, Plaintiff's request that a "Second Order Compelling immediate compliance with the Discovery Order within 10 calendar days and ordering prospective sanctions of \$500 per day for each day following those 10 calendar days that Defendant does not fully comply with the order" is GRANTED. The maximum amount of sanctions under this order shall be \$5,000." [Id.] Plaintiff provided Notice of the Court's Ruling by email on April 6, 2023. [Id. ¶15, Ex. 6.] Thereafter, Defendant rolled out its "compliance." On April 19, 2023, Hyundai served Further Responses, a Privilege Log with a single entry for "Redactions in NHTSA Documents", and production of Bates stamped 171-386 (Warranty Policy and Procedures) and 387-47,351 (NHTSA Documents). [Id. ¶¶16-18.] Thereafter, on April 24, 2023, Hyundai produced documents Bates Stamped 47,352-77,320 (NHTSA Documents) ("Defendant Hyundai Motor America's Third Production of Documents (Per Court Order)"). [Id. ¶19.] Critically, the April 24th production was untimely, which appears to be why Defendant paid \$5000 in sanctions on September 15, 2023. [Decl. of Aliviado ¶32.] Plaintiff's Counsel again deemed the attempted compliance to be deficient and on August 25, 2023, sent Defendant's counsel a meet and confer. [Id. ¶27, Ex. 14.] On the same date, Plaintiff filed the herein motion. [ROA 320.] There is no indication Defendant ever responded to the meet and confer. [Decl. of Aliviado, generally.] Once again, Defendant filed its opposition to the motion late, on September 18, 2023, which is untimely. The Opposition should have been filed by September 14, 2023. Defendant then filed an ex parte seeking to have its belated opposition considered. The Court denied the ex parte on the ground that it had been filed, albeit belatedly. <i>Has Defendant complied with this Court's Orders?</i>
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	As to RFP 8, Plaintiff argues that instead of producing all of the ordered Warranty Policy and Procedure Manuals (2015-present), Hyundai instead cherry-picked excerpts of the manuals from Sections 4.0-4.8, rather than produce the complete manuals (documents Bates stamped 171-386) and excluded the 2020, 2022, and 2023 manuals. Plaintiff argues that cover pages, tables of contents, and indexes, were omitted. Defendant argues it produced “the section of a larger manual directly applicable to the warranty and how the warranty is applied by dealerships to customer vehicles, which is directly on point with how ‘warranty policies and procedures’ could potentially be used in this case. Specifically, HMA has produced Section 4.” [Opp. page 11:11-14.] However, this Court did not order Defendant to produce portions of the manual or specific sections. Rather, this Court ordered Defendant to produce any Warranty Policy and Procedure Manual it provided to authorized repair facilities within the state of California from 2015 to present. Therefore, Defendant’s production does not appear to comply with the Court’s order. Also, as to the missing manuals from 2020, 2022, and 2023, Defendant is correct that the Court’s minute order was from 2021; and therefore, only manuals from 2015-2021 were required. However, as to the 2020 manual, counsel declares, “There were no updates to the manual in 2020.” [Decl. of Aliviado ¶31.] However, it is unclear how counsel has personal knowledge of this fact. As such, it does not appear Defendant complied with the Court’s order. As to RFP 68, Plaintiff makes two arguments. First, Plaintiff argues that Defendant has not produced all documents relevant to this RFP as allegedly evidenced by documents obtained elsewhere. Second, Plaintiff argues that Defendant impermissibly redacted the documents it did produce. It appears through the Court’s modification of the March 18, 2021 tentative ruling that, relating to RFP No. 68, it ordered Defendant to provide
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	documents regarding any communications between Defendant and any government agency or entity (e.g. National Highway Traffic Safety Administration ("NHTSA")) regarding engine defects in the 2011 Hyundai Elantra with a 1.8 liter NU engine, in California. As to documents produced elsewhere which Plaintiff claims Defendant did not produce herein, Plaintiff argues Hyundai has not produced the April 12, 2019 or May 23, 2019 letters from NHTSA to Hyundai, Hyundai's responses to these letters to NHTSA, or the documents Hyundai agreed to produce to NHTSA as memorialized in the May 23, 2019 letter from NHTSA. [Decl. of Dolin¶22.] Attorney Dolin is actually in possession of the two letters from NHTSA to Hyundai (received from another source), which are attached as Exs. 11 and 12 to her declaration. The April 12, 2019 letter refers to: • Subject vehicles: All MY 2011-2014 Hyundai Sonata and MY 2011-2014 Hyundai Santa Fe, and all other Hyundai vehicles equipped with Theta II, Lambda II, Gamma and Nu engines, manufactured for sale or lease in the United States, including, but not limited to, the District of Columbia, and current U.S. territories and possessions. Therefore, as this letter relates to communications between NHTSA and Defendant relating to 2011 Nu engines, it appears it should have been produced. [Decl. of Dolin, Ex. 12.] The May 23, 2019 letter also relates to Nu engines, and as such, should have been produced. Likely, too, the responses to these letters should have been produced. However, the actual production of documents to which these letters relate does not appear necessary as they would not qualify as a "communication." Further, the redactions as to almost the entirety of Hyundai's 76,933 pages of documents produced of NHTSA documents (Bates stamped 387 through 77320), appears improper and not in compliance with this Court's order. Defendant contends that the privilege log was provided to explain the redactions and, "HMA does
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	not need to assert a privilege as to the redacted information because the information is not relevant and not reasonably calculated to lead to the discovery of admissible evidence, and further is not responsive to Plaintiff's request or the Court's order." [Opp. page 10:14-17.] However, there are two problems with this argument. First, the Court ordered Defendant to state whether any documents are being withheld pursuant to a privilege, and if so, to provide a privilege log. That is, the privilege log was for the purpose of providing information as to documents withheld based on a privilege, not redactions. Second, Defendant responded it would provide documents subject to the protective order. However, Defendant fails to cite to any portion of the protective order that allows for redactions. Defendant suggests that the redacted information is irrelevant; however, given the protective order in place, not only are the redactions unnecessary, but breed suspicion. At this point the Court is unwilling to allow Defendant to electively excise from otherwise discoverable documents those portions that it deems not to be relevant. All in all, as set forth above, Defendant has engaged in a pattern of filing untimely oppositions, providing invalid excuses, and failing to timely comply with the discovery statutes and this Court's orders. As mentioned in prior orders, this has caused delay in this case. Defendant appears to have a lackadaisical attitude towards the case and the motions in general, surmising that the case is simply one of many Lemon Law cases filed by Plaintiff, of which the discovery at issue does not advance the case. However, that attitude does not obviate the need to comply with the discovery statutes or this Court's orders. Defendant's attitude and unwillingness to comply has only increased work for Plaintiff's counsel, this Court, and its staff. Also, it is clear that lesser sanctions in the form of prospective, daily monetary sanctions in the amount of \$500 a day, do not compel compliance.
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		At this point, the Court would be inclined to grant issue or evidentiary sanctions; however, Plaintiff did not request that type of relief. As such, the Court orders Defendant to fully comply with its March 18, 2021, April 22, 2022, and April 6, 2023 Orders no later than 5 court days. The Court also orders prospective sanctions of \$5,000.00 per day for each day that Hyundai does not comply after the expiration of the 5 court days if the Court's orders have not been followed. To be clear, as to RFP No. 8, Defendant is to produce the full, entire manuals for 2015-2021. As to RFP No. 68, Defendant to produce all documents without redactions, including the April 12, 2019 and May 23, 2019 letters from NHTSA to Defendant, and Defendant's responsive letters to NHTSA. Following the fifth Court day, Defendant is ordered to pay Plaintiff \$5,000 a day until it has complied with the above. Evidentiary Objections (ROA 366) 1. Overrule 2. Overrule 3. Overrule 4. Overrule 5. Overrule 6. Overrule <i>Plaintiff to give notice.</i>
61	Le vs. Moreno Case No. 30-2022-01272246	Defendant Victor Le ("Defendant") moves to compel Plaintiff Selene Felixmoreno ("Plaintiff") to serve responses to Defendant's Special Interrogatories, Set Two on the ground that Plaintiff failed to timely respond. Defendant served his second set of special interrogatories on February 24, 2023 and responses were due on March 31, 2023. (Declaration of Scott Meininger, ¶ 2.) No extensions were requested and Plaintiff has failed to serve any responses or respond to Defendant's meet and confer efforts. (Id. ¶¶ 3-4.) Because Plaintiff has failed to serve timely responses, Defendant's Motion to Compel is GRANTED. (Code Civ. Proc., § 2030.290(a)-(b).) The Court finds that there is no substantial justification for Plaintiff's failure to respond and sanctions are warranted. (Code Civ. Proc., § 2030.290(c).) Thus, the Court GRANTS